

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, NOVEMBER 14, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JPMORGAN CHASE BANK N.A. vs. BRANDON STEWART
Case No. CL24-02763**

Motion to Compel

TENTATIVE RULING

Defendant's motion for default judgment is denied.

"Entry of default by the court clerk is a statutory prerequisite to both a clerk's default judgment [citation] and a default judgment by the court [citation]." (*People v. One 1986 Toyota Pickup* (1995) 31 Cal.App.4th 254, 259.) While Defendant lodged a request for entry of default with the court along with his motion papers, the request was merely stamped "received" and the clerk took no action on the request.

**CAPTIAL ONE, N.A. vs. LAURICE LOVE
Case No. CL24-04701**

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of

attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant at an address at which personal service of summons and complaint had been completed over a year earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

The court therefore continues hearing to March 5, 2026, at 9:00 a.m. in Dept. 7. Plaintiff is directed to effect service of the motion papers and notice of continued hearing in the manner required for service of summons and complaint, with such service completed at least 16 court days prior to the continued hearing date.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY
Case No. CU23-02408

CUEVA's Demurrer

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing the Court's tentative ruling is as follows.

Defendant D. CUEVA ("CUEVA," erroneously sued as WARDEN OF CALIFORNIA MEDICAL FACILITY) demurs to Plaintiff TROY ANDERSON's complaint for negligence and intentional tort.

The court has not received opposition to the demurrer.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions,